

Instructor: Date:

Learner: Regional Branch:

Program: Center:

CONTENT

- Let's Start! • Let's Explore! • Let's Practice! • Extension Activity • Target Words • Learning Points



Let's Start!

Reviewing Guidelines for the Use and Distribution of Software



Learning Outcome:

The passive of modal verbs, ought to, e.g., Liability ought to be reduced with the proper provisions; risks associated to data breach and how to solve it ought to be studied.

Scope of a software license: licensor and licensee.

Ask your partner:

- Do you usually read the license agreement when you install a new software? Why? Why not?
- Why do you think that companies care about software license agreements?

Can Do Statements:

- I can discuss why a business should care about its software licenses.
- I can talk about the goals that can be achieved by negotiating software licenses.
- I can talk about factors to consider when deciding whether a particular software license agreement requires legal review.



Let's Explore!

What about software licenses?



Instructions: Read the text below.

Hillary: Hey! What are you up? Are you helping me with my task then?

Bill: Sure. Software licenses are my thing.

Hillary: So, let's start. Why are they so important for business?

Bill: Because companies ought to be informed about the different risks and remedies involved when getting software products. Some license agreements are non-negotiable, that's why they present little risk, but others are negotiable and ought to be stipulated.

Hillary: And the potential licensee needs to consider if the vendor's agreement is appropriate and suitable for the customer.

Bill: Exactly! So both have very clear idea of what the product offers.

Hillary: What are the goals that are achieved by negotiating software licenses?

Bill: Well, liability ought to be reduced with the proper provisions. Testing rights should be considered cautiously and the ongoing software performance ought to be addressed as described by the vendor previously. Besides, the scope of the license must be expanded as necessary to cover the software needs.

Hillary: That's it?

Bill: Also, risks associated with data breach and how to solve them ought to be studied. The termination rights need to be clearly stipulated and provided. And what's more, in case of force majeure events, vendors are off the hook.

Hillary: What about the dispute resolution?

Bill: It has to be considered appropriately based on a fair evaluation by both parties.

Hillary: Do you know about the factors to consider when a legal review is required?

Bill: Yes! For instance, cost ought to be analyzed.

Hillary: To see how much the licensee spends on the software.

Bill: Correct! The impact has to be considered as well, to know the performance towards the business. Finally, sensitivity ought to be analyzed.

Hillary: You're the best! I owe you one.





Let's Practice!

Bill and Hillary discuss why businesses should care about their software licenses.

Instructions: Select the correct option to correctly complete each sentence.

1. Companies ought to (be / being / been) informed about the different risks when getting software products.
2. Companies ought to be (informed / inform / informs) about the remedies involved when using a software.
3. Non-negotiable license agreements ought to be (stipulate / stipulated / stipulates).
4. Companies ought to be (enlightened / enlighten / enlightens) about the little risk some license agreements have.
5. Vendors ought to be (tell / tells / told) if the potential licensee is appropriate and suitable for them.



Let's Practice!

Bill shares with Hillary some factors to consider when getting a software license.

Instructions: Read the sentences. Write the missing word(s) in the blank.

Use: Cost ought / ought to be / ought to / be evaluated / license ought to.

1. _____ to be analyzed when using a particular software license.
2. Expenses _____ be considered when necessary.
3. The impact of getting a certain software _____ be analyzed.
4. The software performance ought to _____.
5. The sensitivity towards business _____ studied.



Extension Activity

Now it's your turn to find information about software license agreement.

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Find information about the factors to keep in mind when getting a software license agreement.
- Find information about the legal framework.
- Choose the most important information.
- Organize the information in a mind map.
- Explain to your partners the importance of taking into account some factors when getting a software license agreement.

Self-Assessment

Yes

No

- | | | |
|---|-----------------------|-----------------------|
| 1. I find information about factors to keep in mind when getting a software license agreement. | ☐ | ☐ |
| 2. I find information about the legal framework. | ☐ | ☐ |
| 3. I choose the most important ideas. | ☐ | ☐ |
| 4. I explain to my partners the information of software license agreements by using a mind map. | ☐ | ☐ |



Target Words

- **risk** (noun): a situation that could possibly cause danger or negative consequences.
e.g. Risks associated to data breach and how to solve them ought to be studied.
- **non-negotiable** (adjective): something that doesn't take part of an agreement.
e.g. Some license agreements are non-negotiable, that's why they present little risk.
- **suitable** (adjective): something that is appropriated for a specific case.
e.g. And the potential licensee needs to consider if the vendor's agreement is appropriated and is suitable for the customer.
- **scope** (noun): possibility for something to be used.
e.g. The scope of the license must be expanded as necessary to cover the software needs.
- **off the hook** (expression): when somebody is innocent.
e.g. And what's more, in case of force majeure events, vendors are off the hook.



Learning Points

The Passive of Ought To

We use **ought to** in **passive voice** to give suggestions in different situations.

Ought to is a modal verb that we can use to:
express an opinion when something is right or wrong.
make predictions about something that is expected.
offer advice.

To use **ought to** in **passive voice**, you can follow the next grammatical structure:
Subject + **Ought to** + **Be** + **Verb in Past Participle** + Complement

Example:

*Licenses **ought to be checked** frequently.*

Examples

- *Liability **ought to be reduced** with the proper provisions.*
- *Risks associated to data breach and how to solve them **ought to be studied**.*
- *For instance, cost **ought to be analyzed**.*
- *Finally, sensitivity **ought to be analyzed**.*

Scope of a Software License: Licensor and Licensee

When analyzing the agreements of software licensing, two parts are involved: the licensor and the licensee.

Licensor's perspective: You need a software licensing agreement in case you want to share your software with others while maintaining the ownership. You can limit how software is used and its purposes. Besides, a licensor can restrict the license with limits of the fields that are used, geographic restrictions, number of users allowed, hardware that is used, and ability to transfer the software.

Licensee's perspective: This person is in charge of negotiating the rights to use the software. He could get additional fees in case of exceeding the restrictions. Therefore, it's important to consider possible future needs. Besides, the licensee has to negotiate the rights of the software in case competitors want to use it.

When acquiring a software and negotiating the licensing agreement, both need to see all the details regarding the scope of the license.

